



May 28, 2025

Senator Kristen Gonzalez, Chair
Senate Internet and Technology Committee
Legislative Office Building, Room 817
198 State St.
Albany, NY 12247

Senator Daniel G. Stec, Ranking Member
Senate Internet and Technology Committee
Legislative Office Building, Room 408
188 State St.
Albany, NY 12247

RE: Letter in Opposition to the New York Privacy Act (S3044)

Dear Chair Gonzalez and Ranking Member Stec:

On behalf of the advertising industry, we write to oppose S3044, the New York Privacy Act.¹ We provide this letter to offer our non-exhaustive list of concerns about this bill. Our organizations support meaningful privacy protections for New York residents. However, as described in more detail below, S3044 contains provisions that would enact onerous and unclear requirements that would cause significant compliance challenges and legal uncertainty for businesses and impede New Yorkers' access to digital resources. Furthermore, it would make New York's law out-of-step with privacy laws in approximately 20 other states, thereby adding to the increasingly complex privacy landscape for both businesses and consumers across the country. Accordingly, we ask you to decline to advance the bill as drafted out of the Senate Internet and Technology Committee ("Committee").

- **S3044's atypical definitions would significantly impede businesses from advertising and stifle New Yorkers' access to online resources.** Novel proposed definitions of "targeted advertising," "sale," "sensitive data" and other terms would significantly hamper New York businesses' efforts to adopt a cohesive privacy law compliance strategy across jurisdictions, particularly in the state of New York, the global epicenter of advertising. The bill would also result in a different and more limited Internet experience for New Yorkers as compared to their counterparts in neighboring states, such as Connecticut and New Jersey.
- **Broad and untested data minimization standards would chill commerce and innovation.** S3044's proposed limitations on the collection and processing of personal data would severely restrict New York businesses' ability to develop new offerings and innovate to benefit consumers.
- **Data broker registration requirements are unnecessary.** S3044 would create a data broker registry requirement in New York. Such a registry would impose costs on businesses without providing meaningful commensurate benefits for New York consumers.
- **Onerous and divergent consumer rights processes, notices, and consent obligations would significantly complicate New York businesses' compliance efforts.** Novel proposed requirements for bespoke notices, consumer rights processes, and consent requests would require

¹ New York S3044 (2025-2026 Leg. Sess.), located [here](#) (hereinafter, "S3044").

entities operating in New York to maintain separate disclosures and processes for New York residents, thereby driving up compliance costs and hindering businesses from adopting a nation-wide privacy compliance approach.

- **S3044 does not clearly foreclose the possibility for private enforcement.** The bill does not explicitly state that it does not provide for a private right of action. Without such a statement, the bill would invite private litigants to test its enforcement scheme and bog down New York's courts with lawsuits. S3044 should be updated to clarify that it does not include a private right of action.

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We and our members strongly support meaningful privacy protections for consumers. We believe, however, that S3044 will not further meaningful consumer protections in New York and instead will deviate significantly from other state privacy laws in ways that will hinder New Yorkers' access to information and resources and severely hinder companies' ability to advertise. We therefore respectfully ask the Committee to decline to advance S3044 as proposed.

Thank you for your consideration of this letter.

Sincerely,

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CC: Members of the New York Senate Internet and Technology Committee

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